

SENATE No. 1372

The Commonwealth of Massachusetts

PRESENTED BY:

Bruce E. Tarr

To the Honorable Senate and House of Representatives of the Commonwealth of Massachusetts in General Court assembled:

The undersigned legislators and/or citizens respectfully petition for the adoption of the accompanying bill:

An Act relative to the structure of the Commonwealth Employment Relations Board.

PETITION OF:

NAME:

Bruce E. Tarr

DISTRICT/ADDRESS:

First Essex and Middlesex

SENATE No. 1372

By Mr. Tarr, a petition (accompanied by bill, Senate, No. 1372) of Bruce E. Tarr for legislation relative to the structure of the Commonwealth Employment Relations Board. Labor and Workforce Development.

[SIMILAR MATTER FILED IN PREVIOUS SESSION
SEE SENATE, NO. 1223 OF 2023-2024.]

The Commonwealth of Massachusetts

In the One Hundred and Ninety-Fourth General Court
(2025-2026)

An Act relative to the structure of the Commonwealth Employment Relations Board.

Be it enacted by the Senate and House of Representatives in General Court assembled, and by the authority of the same, as follows:

1 Subsection (a) of Section 9R of Chapter 23 of the General Laws is hereby repealed and
2 replaced with the following:-

3 (a) There shall be in the department of labor relations a commonwealth employment
4 relations board, in this and the following 5 sections called the "board," consisting of 3 members
5 to be appointed by the governor, 1 of whom shall be a representative of organized labor chosen
6 from a list of 3 candidates provided by the president of the Massachusetts AFL-CIO, 1 of whom
7 shall be a representative of municipal management chosen from a list of 3 candidates provided
8 by the Massachusetts Municipal Association, and 1 of whom shall be neutral. The board shall in
9 no respect be subject to the jurisdiction of the executive office of labor and workforce
10 development except to the extent of compliance with reasonable requests from the secretary for

11 the sharing of information which does not interfere with the efficient and independent
12 functioning of the board. Each member of the board shall be appointed for a term of 5 years;
13 provided, however, that a term of appointment shall be shortened, if necessary, to ensure that the
14 members' terms are staggered such that a term expires every 2 years. Any vacancy in the board
15 shall be filled by appointment in like manner. No more than 2 members shall be from the same
16 political party. Upon the expiration of the term of any member, her successor shall be appointed
17 in like manner. Any member may be removed by the governor for neglect of duty or malfeasance
18 in office, but for no other cause.